DRUG AND ALCOHOL MISUSE STATEMENT OF UNDERSTANDING

PRIVACY ACT STATEMENT

AUTHORITY: 10 U.S.C. 1090, Identifying and treating drug and alcohol dependence; 10 U.S.C. 5013, Secretary of the Navy; 10 U.S.C. 5041, Headquarters, Marine Corps; 42 U.S.C. 290dd-2, Confidentiality of records; DoD 6025.18-R, DoD Health Information Privacy Regulation; and E.O. 9397 (SSN), as amended.

PURPOSE(S): This system is used to train, educate, identify, screen, counsel, rehabilitate, and monitor the progress of individuals in drug and alcohol misuse programs. Information is used to screen and evaluate the certified counselors, counselor interns, and counselor applicants throughout the course of their duties.

ROUTINE USES: Information from records may be released without the member's consent in the following situations:

To medical personnel to the extent necessary to meet a bona fide medical emergency.

To qualified personnel for the purpose of conducting scientific research, management audits, or program evaluation, but such personnel may not identify, directly or indirectly, any individual patient in any report of such research, audit or evaluation, or otherwise disclose patient identities in any manner.

If authorized by an appropriate order of a court of competent jurisdiction granted after application showing good case therefore. In accessing good cause, the court shall weigh the public interest and the need for disclosure against the injury to the patient, to the physician patient relationship, and to the Start Printed Page 7770 treatment services. Upon the granting of such order, the court, in determining the extent to which any disclosure of all or any part of any record is necessary, shall impose appropriate safeguards against unauthorized disclosures.

The above prohibitions do not apply to any interchange of records within the Armed Forces or within those components of the Department of Veterans Affairs furnishing health care to veterans or between such components and the Armed Forces.
Records, shall, except as provided therein, be confidential and be disclosed only for the purposes and under the circumstances expressly authorized in 42 U.S.C. 290dd-2. This statute takes precedence over the Privacy Act of 1974, as amended, in regard to accessibility of such records, except to the individual to whom the record pertains.

The content of any record may be disclosed in accordance with prior written consent of the patient with respect to whom such record is maintained, but only to such extent, under such circumstances, and for purposes as may be allowed under such prescribed regulations.

DISCLOSURE: Mandatory.

More information on the SORN may be found at the following link:
https://www.federalregister.gov/documents/2016/02/16/2016-02946/privacy-act-of-1974-system-of-records

I, _____ (*Full name - first, middle, last*) , understand that:	Initials
1. Service in the United States Navy or Naval Reserve places me in a position of special trust and responsibility.	
2. Drug misuse by members of the United States Navy is against the law; and drug and alcohol misuse, in general, violates Navy standards of behavior and duty performance and will not be tolerated.	
3. The illegal or improper use of alcohol, cannabis, and other controlled substances endangers my health and the safety of other Navy service members.	
4. If I legally or improperly use or possess alcohol or drugs, including cannabis, appropriate disciplinary and/or administrative action may be taken against me. In the case of drugs, this action may include trial by court-martial or administrative separation from the Navy. Administrative separation for drug misuse or separation in lieu of trial by court-martial could result in an Other Than Honorable discharge. Conviction by a court-martial of drug related offense may lead to punitive separation. This can result in a denial of education benefits, home loan assistance, and other benefits administered by the Department of Veteran Affairs (DoVA). Additionally, a person receiving such a separation or discharge can expect to encounter substantial prejudice in civilian life in situations where the character of separation or discharge received from the Armed Forces may have a bearing.	
5. a. (Officers Pre-Commissioning Programs) I understand the U.S. Navy's "Zero Tolerance" policy toward drug misuse and that I will be screened by urinalysis testing for the presence of cannabis or other illegal drugs within 72 hours of reporting for training. I further understand that a single detection of drug misuse after entry will result in disenrollment from an officer program and processing for separation from the Navy.	
b. (Enlisted) I understand the U.S. Navy's "Zero Tolerance" policy toward drug misuse by its members and that the Navy will take disciplinary action against those who promote or engage in drug misuse. Pertaining to my enlistment into the Navy, I further understand that:	
(1) The Navy drug urinalysis test can detect the use of prohibited substances.	
(2) The Navy drug urinalysis test is given to all personnel within 72 hours of arrival at the Recruiting Training Command and at other follow-on times necessary	
(3) If I am a Navy Veteran, Other Services Veteran (NAVET/OSVET) and am found to have positive test indications of any prohibited drug use, I shall be processed for separation from the Navy.	